

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC¹

Debtor.

)
) Chapter 11
)
) Case No. 26-11169 (KBO)
)
) **Hearing Date:**
) **September 3, 2026 at 1:00 p.m. (ET)**
)
) **Objection Deadline:**
) **August 27, 2026 at 4:00 p.m. (ET)**
)

**DEBTOR’S APPLICATION FOR ENTRY OF AN ORDER
AUTHORIZING THE EMPLOYMENT OF STRETTO, INC. AS
ADMINISTRATIVE ADVISOR EFFECTIVE AS OF THE PETITION DATE**

Omnis Pleasants, LLC, d/b/a Pleasants Power Station, as debtor in possession (the “**Debtor**”) in the above-captioned chapter 11 case, respectfully states the following in support of this application (this “**Application**”):

RELIEF REQUESTED

1. The Debtor seeks entry of an order, substantially in the form attached hereto as **Exhibit A** (the “**Proposed Order**”), authorizing the Debtor to employ Stretto, Inc. (“**Stretto**”) as administrative advisor (the “**Administrative Advisor**”) in the Debtor’s chapter 11 case, effective as of the Petition Date (as defined below), in accordance with the terms and conditions set forth in that certain Engagement Agreement between the Debtor and Stretto dated July 24, 2026 (the “**Engagement Agreement**”), a copy of which is attached hereto as **Exhibit C**. In support of this Application, the Debtor submits the declaration of Sheryl Betance (the “**Betance Declaration**”), attached hereto as **Exhibit B**.

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

JURISDICTION AND VENUE

2. The United States Bankruptcy Court for the District of Delaware (the “**Court**”) has jurisdiction over this matter pursuant to 28 U.S.C. §§ 157 and 1334(b) and the *Amended Standing Order of Reference* from the United States District Court for the District of Delaware, dated as of February 29, 2012 (the “**Standing Order**”).

3. This is a core proceeding pursuant to 28 U.S.C. § 157(b)(2). Pursuant to Rule 9013-1(f) of the Local Rules of the United States Bankruptcy Court for the District of Delaware (the “**Local Rules**”), the Debtor consents to the entry of a final order by the Court in connection with this Application to the extent that it is later determined that the Court, absent consent of the parties, cannot enter final orders or judgments in connection herewith consistent with Article III of the United States Constitution.

4. Venue is proper before the Court pursuant to 28 U.S.C. §§ 1408 and 1409.

5. The statutory and legal predicates for the relief requested herein are section 327(a) of title 11 of the United States Code (the “**Bankruptcy Code**”), Rule 2014(a) of the Federal Rules of Bankruptcy Procedure (the “**Bankruptcy Rules**”), and Local Rule 2014-1.

BACKGROUND

6. On July 26, 2026 (the “**Petition Date**”), the Debtor commenced a voluntary case under chapter 11 of the Bankruptcy Code (the “**Chapter 11 Case**”). Pursuant to sections 1107(a) and 1108 of the Bankruptcy Code, the Debtor continues to operate its business and manage its financial affairs as debtor in possession.

7. As of the date hereof, no request for the appointment of a trustee or examiner has been made, nor has any statutory committee been appointed or designated in the Chapter 11 Case.

8. A detailed description of the Debtor and its business, including the facts and circumstances giving rise to the Chapter 11 Case and supporting this Application, is set forth in

the *Declaration of David Hindman, as Chief Executive Officer of Omnis Pleasants, LLC, d/b/a Pleasants Power Station, in Support of Chapter 11 Petition and First Day Motions* [Docket No. 10].

BASIS FOR RELIEF

9. Section 327(a) of the Bankruptcy Code provides that a debtor, subject to Court approval:

[M]ay employ one or more attorneys, accountants, appraisers, auctioneers, or other professional persons, that do not hold or represent an interest adverse to the estate, and that are disinterested persons, to represent or assist the [debtor] in carrying out the [debtor]’s duties under this title.

11 U.S.C. § 327(a).

10. Bankruptcy Rule 2014(a) requires that an application for employment include:

[S]pecific facts showing the need for the employment, the name of the [firm] to be employed, the reasons for the selection, the professional services to be rendered, any proposed arrangement for compensation, and, to the best of the applicant’s knowledge, all of the [firm’s] connections with the debtor, creditors, any other party in interest, their respective attorneys and accountants, the U.S. Trustee, or any person employed in the office of the U.S. Trustee.

Fed. R. Bankr. P. 2014.

11. The Debtor submits that retaining Stretto pursuant to the terms of the Engagement Agreement is necessary and in the best interests of the Debtor’s estate and all parties in interest in the Chapter 11 Case. The Debtor also believes that the terms and conditions of the Engagement Agreement are reasonable in light of the anticipated volume of creditors and other parties-in-interest that will be involved in the Chapter 11 Case. The Debtor believes that administration of the Chapter 11 Case will require Stretto to perform duties outside of the scope of those authorized in that certain *Order Authorizing the Debtor to Retain Stretto, Inc. as Claims and Noticing Agent, Effective as of the Petition Date* [Docket No. 47] (the “**Section 156(c) Order**”). Accordingly, to

help the Debtor to manage administrative tasks with respect to the creditors and other parties in interest that are expected to be involved in the Chapter 11 Case, the Debtor requests that the Court enter the Proposed Order employing Stretto as Administrative Advisor in the Chapter 11 Case, pursuant to section 327(a) of the Bankruptcy Code and Bankruptcy Rule 2014.

STRETTO'S QUALIFICATIONS

12. Stretto is a chapter 11 administrator comprised of leading industry professionals with significant experience in both the legal and administrative aspects of large, complex chapter 11 cases. Stretto's professionals have experience in noticing, claims administration, solicitation, balloting, and facilitating other administrative aspects of chapter 11 cases and experience in matters of this size and complexity. Stretto has substantial experience in matters of this size and complexity, and has acted as the official administrative advisor in many large bankruptcy cases. A list of Stretto's active and former cases in this District is set forth in the Betance Declaration.

SERVICES TO BE PROVIDED

13. The Debtor seeks to employ Stretto to provide the following bankruptcy administration advisory services (the "**Administrative Advisor Services**"), if and to the extent requested:

- a. chapter 11 plan balloting and vote tabulation, including preparation of any related reports, as required in support of confirmation of any chapter 11 plan, and an official ballot certification and, if necessary, testimony in support of the ballot tabulation results;
- b. preparation of schedules of assets and liabilities, statements of financial affairs, and monthly operating reports;
- c. bankruptcy disbursements and distributions; and
- d. claims analysis and reconciliation.

14. Stretto's employment as Administrative Advisor will provide the Debtor with experienced professionals and services that are essential to the successful prosecution of the

Chapter 11 Case. Stretto will coordinate with the Debtor's other retained professionals in the Chapter 11 Case to avoid any unnecessary duplication of services. Accordingly, the Debtor submits that the relief requested in this Application is in the best interests of the Debtor's estate and all parties in interest.

PROFESSIONAL COMPENSATION

15. The fees Stretto will charge in connection with providing Administrative Advisor Services to the Debtors are set forth on **Exhibit D** attached hereto. The Debtor submits that Stretto's rates are competitive and comparable to the rates its competitors charge for similar services. Indeed, the Debtor conducted a review and competitive comparison of other firms and reviewed the rates of other firms before selecting Stretto as Administrative Advisor. The Debtor believes Stretto's rates are more than reasonable given the quality of Stretto's services and its professionals' bankruptcy expertise. Additionally, Stretto will seek reimbursement from the Debtor for reasonable expenses in accordance with the terms of the Engagement Agreement.

16. Prior to the Petition Date, the Debtor provided Stretto an advance in the amount of \$25,000. Pursuant to the Section 156(c) Order, Stretto was authorized to apply the advance to all prepetition invoices and, thereafter, to have the advance replenished to the original advance amount and to hold the advance under the Engagement Agreement during the Chapter 11 Case as security for the payment of fees and expenses incurred under the Engagement Agreement. However, Stretto will not apply the advance to any fees and expenses incurred as Administrative Advisor to the Debtor unless and until such fees and expenses have been approved by the Court in accordance with the Proposed Order granting this Application.

17. Stretto intends to apply to the Court for allowance of compensation and reimbursement of expenses incurred after the Petition Date for Administrative Advisor Services.

Stretto will comply with the applicable provisions of the Bankruptcy Code, the Bankruptcy Rules, the Local Rules, and any orders entered in the Chapter 11 Case regarding professional compensation and reimbursement of expenses.

18. Additionally, under the terms of the Engagement Agreement, the Debtor has agreed to indemnify, defend, and hold harmless Stretto and its members, officers, employees, representatives, and agents under certain circumstances specified in the Engagement Agreement, except in circumstances resulting solely from Stretto's fraud, gross negligence, willful misconduct, or as otherwise provided in the Engagement Agreement. The Debtor believes that such an indemnification obligation is customary, reasonable, and necessary to retain the services of an Administrative Advisor in the Chapter 11 Case.

DISINTERESTEDNESS

19. Stretto has conducted a conflicts analysis to determine whether it has any relationships with the creditors and parties in interest provided by the Debtor, and, to the best of the Debtor's knowledge, information, and belief, and except as disclosed in the Betance Declaration, Stretto is a "disinterested person" within the meaning of section 101(14) of the Bankruptcy Code, as required by section 327(a) of the Bankruptcy Code, and does not hold or represent any interest materially adverse to the Debtor's estate in connection with any matter on which it would be employed. Stretto believes that it does not have any relationships with creditors or parties in interest that would present a disqualifying conflict of interest. Stretto will supplement its disclosure to the Court if any facts or circumstances are discovered that would require such additional disclosure.

NOTICE

25. Notice of this Application will be given to the following parties or their respective counsel, as applicable: (i) the Office of the United States Trustee for the District of Delaware;

(ii) the parties included on the Debtor's list of thirty (30) largest unsecured creditors; (iii) TRAG LLC and RG Energy LLC; and (iv) all parties requesting notice pursuant to Bankruptcy Rule 2002. In light of the nature of the relief requested herein, the Debtor submits that due and proper notice has been given under the circumstances, and that no other or further notice is necessary.

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WHEREFORE, the Debtor respectfully requests that the Court enter the Proposed Order, substantially in the form of **Exhibit A**, granting the relief requested herein and such other relief as the Court deems just and appropriate under the circumstances.

Dated: August 13, 2026

/s/ David Hindman

Name: David Hindman

Title: Chief Executive Officer of Omnis Pleasants, LLC

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC¹

Debtor.

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) **Hearing Date:**
) **September 3, 2026 at 1:00 p.m. (ET)**
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NOTICE OF APPLICATION

PLEASE TAKE NOTICE that the above-captioned debtor and debtor in possession (the “**Debtor**”) has filed the *Debtor’s Application for Entry of an Order Authorizing the Employment of Stretto, Inc. as Administrative Advisor Effective as of the Petition Date* (the “**Application**”) with the United States Bankruptcy Court for the District of Delaware (the “**Court**”).

PLEASE TAKE FURTHER NOTICE that any responses or objections to the Application must be filed on or before **August 27, 2026 at 4:00 p.m. (ET)** (the “**Objection Deadline**”) with the United States Bankruptcy Court for the District of Delaware, Wilmington, Delaware 19801. At the same time, you must serve a copy of the objection or response upon the proposed undersigned counsel to the Debtor so as to be received on or before the Objection Deadline.

PLEASE TAKE FURTHER NOTICE THAT A HEARING TO CONSIDER APPROVAL OF THE APPLICATION IS SCHEDULED FOR SEPTEMBER 3, 2026 AT 1:00 P.M. (ET) BEFORE THE HONORABLE KAREN B. OWENS, IN THE UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF DELAWARE, 824 N. MARKET STREET, 6TH FLOOR, COURTROOM NO. 3, WILMINGTON.

PLEASE TAKE FURTHER NOTICE THAT IF NO OBJECTIONS OR RESPONSES TO THE APPLICATION ARE TIMELY FILED IN ACCORDANCE WITH THIS NOTICE, THE COURT MAY GRANT THE RELIEF REQUESTED IN THE APPLICATION WITHOUT FURTHER NOTICE OR A HEARING.

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

Date: August 13, 2026

/s/ James C. Diver

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**Admitted Pro Hac Vice*

*Proposed Co-Counsel to the Debtor and
Debtor in Possession*

Exhibit A

Proposed Order

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re: Omnis Pleasants, LLC ¹ Debtor.	)))))))	Chapter 11 Case No. 26-11169 (KBO) Ref. Docket No. __
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**ORDER AUTHORIZING THE EMPLOYMENT OF STRETTO, INC. AS
ADMINISTRATIVE ADVISOR EFFECTIVE AS OF THE PETITION DATE**

Upon the application (the “**Application**”)² of the Debtor for entry of an order (this “**Order**”), pursuant to section 327(a) of the Bankruptcy Code, Bankruptcy Rule 2014, and Local Rule 2014-1, authorizing the Debtor to employ Stretto as Administrative Advisor effective as of the Petition Date; and this Court having jurisdiction to consider the Application and the relief requested therein in accordance with 28 U.S.C. §§ 157 and 1334 and the Standing Order; and it appearing that this is a core proceeding pursuant to 28 U.S.C. § 157(b); and venue being proper before this Court pursuant to 28 U.S.C. §§ 1408 and 1409; and due and proper notice of the Application having been provided under the particular circumstances; and it appearing that no other or further notice need be provided; and this Court having reviewed the Application; and upon the Betance Declaration and the record of the Chapter 11 Case; and it appearing that the legal and factual bases set forth in the Application establish just cause for the relief granted herein; and it appearing that the relief requested in the Application is in the best interests of the Debtor,

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein shall have the meaning given to such terms in the Application.

its estate, creditors, and all parties in interest; and after due deliberation and sufficient cause appearing therefor, **IT IS HEREBY ORDERED THAT:**

1. The Application is **GRANTED** as set forth herein.
2. In accordance with section 327(a) of the Bankruptcy Code, the Debtor is hereby authorized to employ and retain Stretto as Administrative Advisor effective as of the Petition Date, and Stretto is authorized to perform the Administrative Advisor Services described in the Application.
3. This Order shall not apply to services performed by Stretto under the Clerk of the Court's delegation of duties permitted by 28 U.S.C. § 156(c).
4. The Debtor and Stretto are authorized to take such actions as may be reasonable or necessary to comply with their respective duties as set forth in the Application.
5. Stretto shall apply to this Court for allowance of compensation and reimbursement of expenses incurred after the Petition Date for Administrative Advisor Services in accordance with the applicable provisions of the Bankruptcy Code, the Bankruptcy Rules, the Local Rules, and any orders entered in the Chapter 11 Case regarding professional compensation and reimbursement of expenses.
6. The Debtor shall indemnify the Indemnified Parties (as defined in the Engagement Agreement) under the terms of the Engagement Agreement, as modified by this Order.
7. The Indemnified Parties shall not be entitled to indemnification, contribution, or reimbursement pursuant to the Engagement Agreement for services other than the services provided under the Engagement Agreement, unless such services and the indemnification, contribution, or reimbursement therefor are approved by this Court.

8. Notwithstanding anything to the contrary in the Engagement Agreement, the Debtor shall have no obligation to indemnify the Indemnified Parties, or provide contribution or reimbursement to the Indemnified Parties, for any claim or expense that is either: (i) judicially determined (the determination having become final) to have arisen from Stretto's fraud, gross negligence or willful misconduct; (ii) for a contractual dispute in which the Debtor alleges the breach of Stretto's contractual obligations if this Court determines that indemnification, contribution, or reimbursement would not be permissible pursuant to applicable law; or (iii) settled prior to a judicial determination under (i) or (ii), but determined by this Court, after notice and a hearing, to be a claim or expense for which the Indemnified Parties should not receive indemnity, contribution, or reimbursement under the terms of the Engagement Agreement as modified by this Order.

9. If, before the earlier of (a) the entry of an order confirming a chapter 11 plan in the Chapter 11 Case (that order having become a final order no longer subject to appeal), or (b) the entry of an order closing the Chapter 11 Case, the Indemnified Parties believe that they are entitled to the payment of any amounts by the Debtor on account of the Debtor's indemnification, contribution, and/or reimbursement obligations under the Engagement Agreement (as modified by this Order), including the advancement of defense costs, the Indemnified Parties must file an application therefor in this Court, and the Debtor may not pay any such amounts to the Indemnified Parties before the entry of an order by this Court approving the payment. This paragraph is intended only to specify the period of time under which this Court shall have jurisdiction over any request for fees and expenses by the Indemnified Parties for indemnification, contribution, or reimbursement, and not a provision limiting the duration of the Debtor's obligation to indemnify the Indemnified Parties. All parties in interest shall retain the right to

object to any demand by the Indemnified Parties for indemnification, contribution, or reimbursement.

10. The limitation of liability section in paragraph 10 of the Engagement Agreement is deemed to be of no force or effect with respect to the services to be provided pursuant to this Order.

11. Notwithstanding any term in the Engagement Agreement to the contrary, this Court retains jurisdiction with respect to all matters arising from or related to the implementation of this Order.

12. Notwithstanding any provision in the Bankruptcy Rules to the contrary, this Order shall be immediately effective and enforceable upon its entry.

13. In the event of any inconsistency between the Engagement Agreement, the Application, and this Order, this Order shall govern.

Exhibit B

Betance Declaration

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC¹

Debtor.

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) Chapter 11
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) Case No. 26-11169 (KBO)
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**DECLARATION OF SHERYL BETANCE IN SUPPORT
OF THE DEBTOR'S APPLICATION FOR ENTRY OF AN
ORDER AUTHORIZING THE EMPLOYMENT OF STRETTO, INC. AS
ADMINISTRATIVE ADVISOR EFFECTIVE AS OF THE PETITION DATE**

I, Sheryl Betance, declare under penalty of perjury that the following is true and correct to the best of my knowledge, information, and belief:

1. I am a Senior Managing Director at Stretto, Inc. ("**Stretto**"), a chapter 11 administrative services firm with offices located at 410 Exchange, Suite 100, Irvine, CA 92602. I am duly authorized to make this declaration on behalf of Stretto. Except as otherwise noted, I have personal knowledge of the matters set forth herein, and if called and sworn as a witness, I could and would testify competently thereto.

2. I submit this declaration in support of the *Debtor's Application for Entry of an Order Authorizing the Employment of Stretto, Inc. as Administrative Advisor Effective as of the Petition Date* (the "**Application**") filed by the above-captioned debtor and debtor in possession (the "**Debtor**").²

¹ The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein have the meanings set forth in the Application.

3. Stretto has acted as administrative advisor in numerous chapter 11 cases of comparable size and complexity, including several cases pending in this District: *In re SiFi Networks America, LLC*, Case No. 26-01136 (BLS) (Bankr. D. Del. June 9, 2026); *In re BY Hotel SPE-3 LLC*, Case No. 26-10324 (JKS) (Bankr. D. Del. Mar. 17, 2026); *In re Archblock LLC*, Case No. 26-10152 (CTG) (Bankr. D. Del. Feb. 12, 2026); *In re FLOAT Alaska LLC*, Case No. 26-10075 (CTG) (Bankr. D. Del. Jan. 28, 2026); *In re Grand Slam Track*, Case No. 25-12188 (KBO) (Bankr. D. Del. Dec. 23, 2025); *In re Conscious Content Media, Inc.*, Case No. 25-12231 (BLS) (Bankr. D. Del. Dec. 19, 2025); *In re iRobot Corp.*, Case No. 25-12197 (BLS) (Bankr. D. Del. Dec. 16, 2025); *In re Norcold LLC*, Case No. 25-11933 (TMH) (Bankr. D. Del. Nov. 4, 2025); *In re US Magnesium LLC*, Case No. 25-11696 (BLS) (Bankr. D. Del. Sept. 12, 2025); *In re IMG Holdings Inc.*, Case No. 25-11500 (KBO) (Bankr. D. Del. Aug. 13, 2025); and *In re My Job Matcher, Inc.*, Case No. 25-11280 (KBO) (Bankr. D. Del. July 8, 2025).

4. In its capacity as Administrative Advisor, at the request of the Debtor, Stretto will perform the Administrative Advisor Services, and in performing such services, Stretto will charge the Debtor the rates set forth on Exhibit D to the Application.

5. Stretto is a “disinterested person” as that term is defined in section 101(14) of the Bankruptcy Code, in that Stretto and its professional personnel:

- a. are not creditors, equity security holders, or insiders of the Debtor;
- b. are not and were not, within two years before the date of the filing of the Chapter 11 Case, directors, officers, or employees of the Debtor; and
- c. do not have an interest materially adverse to the interest of the Debtor’s estate or of any class of creditors or equity security holders, by reason of any direct or indirect relationship to, connection with, or interest in, the Debtor.

6. I caused to be submitted for review by our conflicts system the names of potential parties in interest (the “**Potential Parties in Interest**”) in the Chapter 11 Case. The list of Potential

Parties in Interest, attached hereto as **Exhibit 1**, was provided by the Debtor and included, among other parties, the Debtor, non-Debtor affiliates, current and former directors and officers of the Debtor, significant stockholders, secured creditors, lenders, the Debtor's largest unsecured creditors, the U.S. Trustee, and persons employed in the office of the U.S. Trustee, and other parties. The Potential Parties in Interest list was compared to an internal database that includes, among others, Stretto's parent entities, affiliates, and subsidiaries. Stretto's internal database also includes Stone Point Capital LLC ("**Stone Point**"), its funds, and each such fund's respective portfolio companies as set forth in the list most recently provided to Stretto by Stone Point's internal compliance department (the "**Stone Point Searched Parties**"). The results of the conflict check were compiled and reviewed by Stretto professionals under my supervision. At this time, and as set forth in further detail herein, Stretto is not aware of any connection that would present a disqualifying conflict of interest. Should Stretto discover any new relevant facts or connections bearing on the matters described herein during the period of its retention, Stretto will use reasonable efforts to promptly file a supplemental declaration.

7. To the best of my knowledge and based solely upon information provided to me by the Debtor, and except as provided herein, neither Stretto, nor any of its professionals, has any materially adverse connection to the Debtor, its creditors or other relevant parties. Stretto has and will continue to represent clients in matters unrelated to the Chapter 11 Case. In addition, in matters unrelated to the Chapter 11 Case, Stretto and its personnel have and will continue to have relationships personally or in the ordinary course of business with certain vendors, professionals, financial institutions, and other parties in interest that may be involved in the Chapter 11 Case. Stretto may also provide professional services to entities or persons that may be creditors or parties in interest in the Chapter 11 Case, which services do not directly relate to, or have any direct

connection with, the Chapter 11 Case or the Debtor. Based upon a review of the Potential Parties in Interest:

- a. DLA Piper LLP has been identified as a Potential Party in Interest. Jonathan King, a Partner with DLA Piper LLP, is a current client of Stretto's depository services business and chapter 7 software business in his individual capacity, but such relationship is unrelated to the Debtor and its estate, assets, or businesses.
- b. The list of Potential Parties in Interest identifies the following entities, which are clients of Stretto's Chapter 11 Dockets business—a subscription service that provides clients with access to databases of public bankruptcy case docket information acquired through PACER: DLA Piper LLP, McDermott Will & Schulte, LLP, Sidley Austin LLP, and Vinson & Elkins LLP. To the best of my knowledge, such relationship is materially unrelated to the Chapter 11 Case.
- c. The list of Potential Parties in Interest identifies U.S. Bank National Association, which is one of Stretto's lenders, as one of the Debtor's banks. However, to the best of my knowledge, such relationship is materially unrelated to the Chapter 11 Case.
- d. The list of Potential Parties in Interest includes entities, as set forth on **Exhibit 2** attached hereto, which are current, former or potential defendants to avoidance actions brought under the Bankruptcy Code by clients of Stretto Recovery Services. However, to the best of my knowledge, such relationships are materially unrelated to the Chapter 11 Case.

8. To the best of my knowledge, none of Stretto's employees are related to bankruptcy judges in the District of Delaware, the United States Trustee for Region 3, or any attorney known by Stretto to be employed in the Office of the United States Trustee serving the District of Delaware. The list of Potential Parties in Interest identifies the Honorable Mary F. Walrath, United States Bankruptcy Judge for the District of Delaware. Denise Kaloudis, a Managing Director at Stretto, formerly worked as a law clerk to the Honorable Mary F. Walrath. I have been advised that Denise Kaloudis did not work on matters involving the Debtor while employed as a law clerk to the Honorable Mary F. Walrath.

9. Certain of Stretto's professionals were partners of or formerly employed by firms that are providing or may provide professional services to parties in interest in the Chapter 11 Case. Except as may be disclosed herein, these professionals did not work on any matters involving the Debtor while employed by their previous firms. Moreover, these professionals were not employed by their previous firms when the Chapter 11 Case was filed. To the best of my knowledge, none of Stretto's professionals were partners of, or formerly employed within the last three years by firms that are Potential Parties in Interest or that have filed a notice of appearance in the Chapter 11 Case.

10. Stretto and its personnel in their individual capacities regularly utilize the services of law firms, investment banking and advisory firms, accounting firms, and financial advisors. Such firms engaged by Stretto or its personnel may appear in chapter 11 cases representing the Debtor or parties in interest. To the best of my knowledge, Stretto does not currently utilize the services of any law firms, investment banking and advisory firms, accounting firms, or financial advisors who have been identified as Potential Parties in Interest or who have filed a notice of appearance in the Chapter 11 Case.

11. At the request of the Debtor and as provided in the Engagement Agreement, Stretto or its affiliate may provide services other than the services described in the Application to the Debtor that it may require in the ordinary course of business, including establishing one or more accounts with financial institutions in the name of and as agent for the Debtor to facilitate depository management and other treasury services, for which Stretto or its affiliate may be compensated by the applicable financial institution.

12. In April 2017, Stretto was acquired by the Trident VI Funds managed by private equity firm Stone Point. Stone Point is a financial services-focused private equity firm based in

Greenwich, Connecticut. The firm has raised and managed ten private equity funds—the Trident Funds—with aggregate committed capital of approximately \$65 billion. Stone Point targets investments in the global financial services industry and related sectors.

13. The following disclosure is made out of an abundance of caution in an effort to comply with the Bankruptcy Code and Bankruptcy Rules. Stretto has searched the names of the Debtor and the names of the Potential Parties in Interest against the Stone Point Searched Parties. Based solely upon the foregoing search, Stretto has determined that Alliant Insurance Services, owned by Trident Fund VII, has been identified as an insurance provider of the Debtor. However, to the best of Stretto's knowledge, Stretto's relationship to this entity does not create any adverse interest against the Debtor's estate that would present a disqualifying conflict of interest, and there are no other connections that require disclosure. To the extent Stretto learns of any material connections between Stone Point's funds or investments included in the above-described conflicts search and the Debtor, Stretto will promptly file a supplemental disclosure. Stretto may have had, may currently have, or may in the future have business relationships unrelated to the Debtor with one or more Stone Point entities including, among others, portfolio companies of Stone Point.

14. From time to time, Stretto partners or employees personally invest in mutual funds, retirement funds, private equity funds, venture capital funds, hedge funds and other types of investment funds (the "**Investment Funds**"), through which such individuals indirectly acquire a debt or equity security of many companies, one of which may be the Debtor or its affiliates, often without Stretto's or its personnel's knowledge. Each Stretto partner or employee generally owns substantially less than one percent of such Investment Fund, does not manage or otherwise control such Investment Fund and has no influence over the Investment Fund's decision to buy, sell, or vote any particular security. Each Investment Fund is generally operated as a blind pool, meaning

that when the Stretto partners or employees make an investment in the particular Investment Fund, he, she or they do not know what securities the blind pool Investment Fund will purchase or sell, and have no control over such purchases or sales.

15. From time to time, Stretto partners or employees may personally directly acquire a debt or equity security of a company that may be the Debtor or its affiliates. Stretto has a policy prohibiting its partners and employees from using confidential information that may come to their attention in the course of their work. In this regard, subject to the foregoing, all Stretto partners and employees are barred from trading in securities with respect to matters in which Stretto is retained. Subject to the foregoing, upon information and belief, and upon reasonable inquiry through email survey of Stretto's employees, Stretto does not believe that any of its partners or employees own any debt or equity securities of a company that is a Debtor or of any of its affiliates.

16. To the best of my knowledge, Stretto (a) does not hold or represent an interest adverse to the Debtor's estate; (b) is a "disinterested person" that (i) is not a creditor, an equity security holder, or an insider, (ii) is not and was not, within two years before the Petition Date, a director, officer, or employee of the Debtor, and (iii) does not have an interest materially adverse to the interest of the Debtor's estate or of any class of creditors or equity security holders, by reason of any direct or indirect relationship to, connection with, or interest in, the debtor, or for any other reason; and (c) has disclosed all of Stretto's connections with the Debtor, its creditors, any other party in interest, their respective attorneys and accountants, the U.S. Trustee, or any person employed in the office of the U.S. Trustee.

Pursuant to 28 U.S.C. § 1746, I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief.

Dated: August 13, 2026

/s/ Sheryl Betance

Sheryl Betance
Senior Managing Director
Stretto, Inc.
410 Exchange, Ste. 100
Irvine, California 92602

Exhibit 1

List of Potential Parties in Interest

<u>Schedule</u>	<u>Category</u>
1(a)	Debtor and Non-Debtor Affiliates
1(b)	Current and Recent Former Directors and Officers
1(c)	Banking and Other Financial Institutions
1(d)	Parties with Ownership Interests in Debtor Affiliates
1(e)	Benefit Providers and Third-Party Administrators
1(f)	Contract Counterparties
1(g)	Debtor's Bankruptcy Professionals
1(h)	Insurance Providers, Agents and Financiers
1(i)	Secured Lenders, UCC Lien Parties, and Administrative Agents
1(j)	Lenders' Advisors
1(k)	Ordinary Course Professionals
1(l)	Surety Bond Issuers and Beneficiaries
1(m)	Taxing, Governmental, and Regulatory Authorities
1(n)	Top 30 Unsecured Creditors
1(o)	U.S. Trustee Personnel and Bankruptcy Judges & Staff
1(p)	Utility Providers
1(q)	Vendors
1(r)	Others

SCHEDULE 1(a)

Debtor and Non-Debtor Affiliates

ELEMENT H DATA, LLC	OMNIS GRAPHITE TECHNOLOGIES, LLC
HODSON INVESTMENTS, LLC	OMNIS MINING TECHNOLOGIES, LLC
OBT ASHLAND, LLC	OMNIS PLEASANTS, LLC
OBT BLUEFIELD, LLC	OMNIS QUANTUM TRANSDUCTION TECHNOLOGIES, LLC
OBT WEST VIRGINIA, LLC	OMNIS REGENERATIVE ENERGY, LLC
OMNIS ADVANCED TECHNOLOGIES, LLC	OMNIS SOLID ENERGY REFINING, LLC
OMNIS BAILEY, LLC	OMNIS SUBLIMATION RECOVERY TECHNOLOGIES, LLC
OMNIS BUILDING TECHNOLOGIES, LLC	OMNIS THERMAL TECHNOLOGIES, LLC
OMNIS ENERGY GROUP, INC.	OMNIS WATER TECHNOLOGIES, LLC
OMNIS ENERGY MANAGEMENT, LLC	QUANTUM NANO IMPACT, LLC
OMNIS ENERGY REFINERIES, LLC	QUANTUM PLEASANTS, LLC
OMNIS ENERGY, LLC	QUANTUM RESERVOIR IMPACT, INC.
OMNIS FARMING TECHNOLOGIES, LLC	SIMON HODSON
OMNIS FUEL TECHNOLOGIES, LLC	STARSOURCE, LLC
DBA OMNIS ENERGY	
OMNIS GLOBAL TECHNOLOGIES, LLC	

SCHEDULE 1(b)

Current and Recent Former Directors and Officers

DAVID HINDMAN

GILBERT NATHAN / JACKSON SQUARE ADVISORS LLC

RANDALL SMITH

RICHARD HULME

SIMON HODSON

SCHEDULE 1(c)

Banking and Other Financial Institutions

NBT BANK

U.S. BANK NATIONAL ASSOCIATION DBA ELAN FINANCIAL SERVICES

WESTERN ALLIANCE BANK

SCHEDULE 1(d)

Parties with Ownership Interests in Debtor Affiliates¹

DEMETRIO TUASON
DOUG GRUNDER
GLEN BECK
HARMONY TRUST
JAMES SWENSON
JONATHAN HODSON
MARTIN TUASON
NICHOLSON THOMAS
TRAG LLC
WILLIAM (BILL) COLE
ROBBINS RESEARCH INTERNATIONAL, INC

¹ Not including entities who are otherwise Debtor affiliates.

SCHEDULE 1(e)

Benefit Providers and Third-Party Administrators

CHARLES SCHWAB CORP.

HIGHMARK WEST VIRGINIA

HUMANA INSURANCE CO

LIFETIME BENEFIT SOLUTIONS

PAYLOCITY

SPECTRUM PENSION CONSULTANTS, INC.

SCHEDULE 1(f)

Contract Counterparties

EMERA ENERGY

HINES FURONG LINE, INC.

JEMKEL DIAGNOSTIC, INC.

JILL LEASURE

PUREENERGY MANAGEMENT SERVICES, LLC

TENASKA POWER SERVICES CO.

THE CHRISTOPHER GROUP

TWIN EAGLE RESOURCE MANAGEMENT

TYR ENERGY, INC.

SCHEDULE 1(g)

Debtor's Bankruptcy Professionals

ALIXPARTNERS LLP

AP SERVICES, LLC

HERBERT SMITH FREEHILLS KRAMER LLP

HOULIHAN LOKEY

SIDLEY AUSTIN LLP

STRETTO INC.

YOUNG CONAWAY STARGATT & TAYLOR LLP

SCHEDULE 1(h)

Insurance Providers, Agents and Financiers

ALLIANT INSURANCE SERVICES
AMBRIDGE PARTNERS LLC
ASPEN INSURANCE UNITED KINGDOM
ASSOCIATED ELECTRIC & GAS INSURANCE SERVICES LIMITED (AEGIS)
BEAZLEY EXCESS AND SURPLUS INSURANCE, INC.
CAC SPECIALTY
CONVEX INSURANCE UK LTD
ENDURANCE WORLDWIDE INSURANCE LTD
ENERGY INSURANCE MUTUAL LIMITED
EVEREST INDEMNITY INSURANCE COMPANY
FIRST INSURANCE FUNDING
LLOYDS OF LONDON
NATIONAL FIRE & MARINE INS CO
QBE UK LIMITED
SOMPO INTERNATIONAL HOLDINGS LTD.
STARR SURPLUS LINES INSURANCE CO
TRAVELERS PROPERTY CASUALTY CO OF AMERICA
UNITED SPECIALTY INSURANCE COMPANY

SCHEDULE 1(i)

Secured Lenders, UCC Lien Parties, and Administrative Agents

RG ENERGY LLC

TRAG LLC

SCHEDULE 1(j)

Lenders' Advisors

DLA PIPER

MCDERMOTT WILL & SCHULTE, LLP

ROBINSON & MCELWEE PLLC

SCHEDULE 1(k)

Ordinary Course Professionals

FIRLEY, MORAN, FREER & EASSA, CPA, P.C.

JACKSON KELLY PLLC

STEPTOE & JOHNSON PLLC

WESSEL & COMPANY

SCHEDULE 1(I)

Surety Bond Issuers and Beneficiaries

THE HARTFORD INSURANCE GROUP, INC.
WEST VIRGINIA DIVISION OF HIGHWAYS

SCHEDULE 1(m)

Taxing, Governmental, and Regulatory Authorities

DELAWARE DIVISION OF CORPORATIONS

FEDERAL ENERGY REGULATORY COMMISSION

INTERNAL REVENUE SERVICE

PLEASANTS COUNTY SHERIFF

STATE OF WEST VIRGINIA DEPARTMENT OF COMMERCE

WEST VIRGINIA DEPARTMENT OF ENVIRONMENTAL PROTECTION

WEST VIRGINIA DEPARTMENT OF ENVIRONMENTAL PROTECTION DIVISION OF
AIR QUALITY

WEST VIRGINIA DEPARTMENT OF ENVIRONMENTAL PROTECTION DIVISION OF
WATER AND WASTE MANAGEMENT

WEST VIRGINIA STATE AUDITORS OFFICE

WEST VIRGINIA STATE TAX DEPARTMENT

SCHEDULE 1(n)

Top 30 Unsecured Creditors

AIR HYDRO POWER, LLC
BILT TECHNOLOGIES, LLC N/K/A KURO
INFRASTRUCTURE DELAWARE, INC.
BLACK, MCCUSKEY, SOUERS & ARBAUGH
BLUETERRA INNOVATIONS, LLC
BOWLES RICE
BOYD COMPANY CAT WALKER
CONTROL SYSTEMS COMPANY
DUBOIS CHEMICALS INC
ENERGY PIPING, WV LLC
ENG RESOURCES, LLC
FILTECH INCORPORATED
FRENZELIT INCORPORATED
GAI CONSULTANTS INC
INDUSTRIAL ACCESSORIES COMPANY
INSTRUMENTATION.COM
INTEG ENTERPRISE CONSULTING
INTELLIGENT TECHNOLOGY SOLUTIONS
J & J EQUIPMENT CO
JABO SUPPLY CORPORATION
LITMAN EXCAVATING, INC.
MERRELL BROS., INC.
OHIO RIVER MARINE LLC
PLEASANTS, LLC
PRECISION PUMP & VALVE SERVICE
SIEMENS ENERGY INCORPORATED
TRI-STATE INDUSTRIAL SUPPLY
UNITED CONSTRUCTION CO INC
UNITED RENTALS NORTH AMERICA INC
VINSON & ELKINS LLP
WEST VIRGINIA ECONOMIC DEVELOPMENT
AUTHORITY (WVEDA)

SCHEDULE 1(o)

U.S. Trustee Personnel and Bankruptcy Judges & Staff

ANDREW R. VARA
BENJAMIN HACKMAN
BRENDAN L. SHANNON
CHRISTINE GREEN
CRAIG T. GOLDBLATT
DENIS COOKE
DIANE GIORDANO
DION WYNN
EDITH A. SERRANO
JOSEPH MCMAHON
KAREN B. OWENS
KATE STICKLES
LAURIE SELBER SILVERSTEIN
MARY F. WALRATH
STEPHEN L. GRANT
THOMAS M. HORAN

SCHEDULE 1(p)

Utility Providers

AT&T

CITY OF BELMONT

FIRSTENERGY (MON POWER)

FRONTIER

VERIZON

WASTE MANAGEMENT NATIONAL SVCS

SCHEDULE 1(q)

Vendors

4X INDUSTRIAL LLC WELLS TRUCK
ABT LLC
ACTION SUPPLY PRODUCTS INC
AIRGAS INCORPORATED
ALLIANCE COAL, LLC
ALLIANCE TECHNICAL GROUP, LLC
ALLIED UNIVERSAL SECURITY
SYSTEMS
AMERICAN ARBITRATION
ASSOCIATION
AMERICAN ELECTRIC POWER
AMERICAN EQUIPMENT HOLDINGS
LLC
AP SERVICES, LLC DBA CURTISS-
WRIGHT CORP
APPLIED INDUSTRIAL
TECHNOLOGIES
ARM CAMCO LLC
B&B WRECKING & EXCAVATING, INC
BEARING DISTRIBUTORS INC
BELLAIRE HARBOR SERVICE LLC
BELMONT VOLUNTEER FIRE
DEPARTMENT
BODYGARD LLC
BRAND ENERGY SVCS LLC
CAPP USA
CARMEUSE AMERICAS
CARVERS ELECTRIC PLUMBING &
HEATING
CGI INTERNATIONAL LLC
CITY MACHINE TECHNOLOGIES INC
COLUMBUS EQUIPMENT COMPANY
COMMERCIAL GROUP LIFTING
PRODUCTS
COPERION PROCESS SOLUTIONS
DENOXDIRECT LLC
DIAMOND T SERVICES, INC.

DXP ENTERPRISES, INC.
EMAR CORPORATION
EMERSON PROCESS MANAGEMENT
POWER & WATER SOLUTIONS
EMP SERVICES LLC
ENERFAB, LLC
ENVIRONMENTAL SAFETY
SOLUTIONS
ENVIRONMENTAL SYSTEMS CORP
EQUIPMENT AND CONTROLS INC.
ESTABROOK CORPORATION
EVOQUA WATER TECHNOLOGIES
EXELE INFORMATION SYSTEMS, INC
FLOWSERVE US INC.
GENERAL KINEMATICS
CORPORATION
GENERAL SUPPLY & SERVICES INC
GRACE CONSULTING
INCORPORATED
GRAINGER
GRAVER TECHNOLOGIES LLC
GRIDFORCE ENERGY MANAGEMENT
GROOME INDUSTRIAL SERVICE
GROUP
GSE PERFORMANCE SOLUTIONS, LLC
GUTOR ELECTRONIC AMERICAS LLC
HAAS SEPTIC & PORTABLE TOILET
HC FAIRBANKS HEATING AND
COOLING
HOFFMAN-KANE
HOPE GAS, INC.
HUGHES-PRIMEAU CONTROLS INC
INDUSTRIAL ENVIRONMENTAL, INC.
INDUSTRIAL SCIENTIFIC CORP
INGRAM BARGE COMPANY LLC
IPS CRANES INCORPORATED

IVS HYDRO INC
JIMMIE HARPER CONSTRUCTION
KADEN DIRECTIONAL DRILLING LLC
LGG INDUSTRIAL, INC.
LIQUIDMETAL COATING SOLUTIONS,
LLC
LUBRICATION ENGINEERS INC
MAGNETECH INDUSTRIAL SERVICES
MAGOTTEAUX INCORPORATED
MATHESON TRI-GAS INCORPORATED
MATTHEWS LUBRICANTS INC
METALTECH STEEL COMPANY LLC
MIDWAY MACHINING INC
MPW INDUSTRIAL WATER SERVICES
MUNTERS CORPORATION
MUSTANG AERIAL SERVICES INC
MW WATERMARK LLC
NAES CORPORATION
NALCO COMPANY LLC
OHIO TRANSMISSION CORPORATION
PERINE BROS TRUCKING, LLC
PJM INTERCONNECTION LLC
PJP LAW PLLC
PLEASANTS ACQUISITION COMPANY
POLARIS SOLUTIONS, INC.
POTESTA & ASSOCIATES, INC.

PREMIER SAFETY
PVS CHEMICAL SOLUTIONS INC
RICHARD STEEL CO
ROCK CREEK ENERGY GROUP, LLP
SEQUENT ENERGY MANAGEMENT
SHERLOCK OIL COMPANY, INC
SISTERSVILLE TANK WORKS INC
SUMMIT ENVIRONMENTAL SERVICES
SUNRAY ELECTRIC SUPPLY
COMPANY
THE VOTO MANUFACTURERS SALES
CO INC
TOWNLEY ENGINEERING &
MANUFACTURING
TOWNLEY FOUNDRY & MACHINE CO
TRC ENVIRONMENTAL
CORPORATION
ULTIMO MEASUREMENT LLC
UNITED CONVEYOR SUPPLY
COMPANY
UNIVAR USA INCORPORATED
WEIR SLURRY GROUP INC
WEST VIRGINIA UNIVERSITY
WYOMING EAGLE, LLC.

SCHEDULE 1(r)

Others

ARBOR PLACE LLC
ADELPHI CONSTRUCTION
ANGELA CHEN SABELLA
CHARLES GASSENHEIMER
CONAMICS, INC.
CONCRETE TECHNOLOGIES CORPORATION
DOCRETE LLC
DYNAMIC FINANCE CORPORATION
DYNAMIC HOLDINGS CORPORATION
E KASHOGGI INDUSTRIES, LLC
EARTHSHELL CORPORATION
G FAMILY HOLDINGS
MEDIPLAN, INC.
MODDHA & PORAZZO, LLC
QRI GROUP, LLC
QRI INVESTORS, LLC
SALUDENT INTERNATIONAL, INC.
STARBUILD, LLC
UNIVERSAL EDGE TECHNOLOGIES, INC.

Exhibit 2

AlixPartners LLP
Allied Universal Security Services
AT&T
Emerson Process Management LLP
First Insurance Funding Corp
General Supply & Services Inc.
Paylocity Corporation
State of West Virginia
United Rentals (North America), Inc.
Verizon
Weir Slurry Group Inc.

Exhibit C

Engagement Agreement

Services Agreement

This Services Agreement (this “**Agreement**”) is entered by and between Stretto, Inc. (“**Stretto**”) and Omnis Pleasants, LLC the “**Company**”).¹

In consideration of the promises set forth herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. Services

- (a) Stretto agrees to provide the following services for the Company if and to the extent requested:
 - (i) services under the Clerk of the Court’s delegation of duties permitted by 28 U.S.C. § 156(c) pertaining to the provision of notices, dockets, calendars, and other administrative information to parties in interest in the Company’s bankruptcy cases, including, but not limited to, (A) service of notices, orders, pleadings, and other documents; (B) preparation and filing of certificates of service; (C) maintenance and monitoring of dockets, calendars, claims registers, proofs of claim and proofs of interest, schedules of assets and liabilities, statements of financial affairs, and creditor mailing matrices; (D) providing a call center and communication support services; and (E) provision of an electronic platform for filing proofs of claim and a case website with case and docket information (the “**Clerk Services**”); and
 - (ii) (A) preparation of schedules of assets and liabilities, statements of financial affairs, and monthly operating reports; (B) claims analysis and reconciliation, including avoidance actions; (C) plan balloting and vote tabulation; (D) assistance with issuance of securities in connection with the Company’s bankruptcy cases; (E) bankruptcy disbursements and distributions; and (F) certain other bankruptcy administration advisory services (the “**Administrative Advisor Services**”). The Clerk Services and the Administrative Advisor Services are referred to herein collectively as the “**Services**”.
- (b) The Company acknowledges and agrees that Stretto will often take direction from the Company’s representatives, employees, agents, and/or professionals (collectively, the “**Company Parties**”) with respect to providing services hereunder. The parties agree that Stretto may rely upon, and the Company agrees to be bound by, any requests, advice, or information provided by the Company Parties to the same extent as if such requests, advice, or information were provided by the Company.
- (c) The Company agrees and understands that Stretto shall not provide the Company or any other party with legal advice.
- (d) Nothing in this Agreement shall prevent the Company and Stretto from entering into other agreements for Stretto to provide services other than the Services that the Company may require in the ordinary course of its business.

2. Rates, Expenses and Payment

- (a) Stretto will provide the Services on an as-needed basis and upon request or agreement of the Company. Stretto will charge for Clerk Services through the effective date of a chapter 11 plan at the rates attached hereto as **Exhibit C**, and thereafter the Company agrees that Clerk Services will be provided at Stretto’s then prevailing rates. Administrative Advisor

¹ The Company shall include, to the extent applicable, the Company, as debtor and debtor in possession in any chapter 11 case.

Services are charged under a separate rate structure provided upon request. The Company agrees to pay for reasonable out of pocket expenses incurred by Stretto in connection with providing Services hereunder.

- (b) Stretto will bill the Company separately for the Clerk Services and the Administrative Advisor Services and no less frequently than monthly. All invoices for Clerk Services shall be due and payable upon receipt. Where an expense or group of expenses to be incurred is expected to exceed \$10,000 (e.g., publication notice), Stretto may require advance or direct payment from the Company before the performance of Services hereunder. If any amount for Clerk Services is unpaid as of 30 days after delivery of an invoice, the Company agrees to pay a late charge equal to 1.5% of the total amount unpaid every 30 days. Except as otherwise required by the Court or the Clerk of the Court, Stretto reserves the right to suspend or discontinue providing additional services if billed amounts are not paid when due.
- (c) In the case of a dispute with respect to an invoice amount, the Company shall provide a detailed written notice of such dispute to Stretto within 10 days of receipt of the invoice.
- (d) The undisputed portion of the invoice will remain due and payable immediately upon receipt thereof. Late charges shall not accrue on any amounts disputed in good faith.
- (e) The Company shall pay any fees and expenses for Services relating to, arising out of, or resulting from any error or omission made by the Company or the Company Parties.
- (f) The Company shall pay or reimburse any taxes that are applicable to Services performed hereunder or that are measured by payments made hereunder and are required to be collected by Stretto or paid by Stretto to a taxing authority.
- (g) Upon execution of this Agreement, the Company shall pay Stretto an advance in the amount of \$25,000 that may be held by Stretto as security for the Company's payment obligations under this Agreement. Stretto may use the advance against all unpaid fees and expenses (prepetition or postpetition), which advance shall be replenished immediately by the Company to the original advance amount. Stretto shall be entitled to hold the advance until termination of this Agreement, and thereafter, Stretto shall return to the Company any amount of the advance that remains following use against unpaid fees and expenses.
- (h) Stretto reserves the right to make reasonable increases to its rates on a periodic basis. If any such increase represents an increase greater than 10% from the previously effective level, Stretto shall provide 30 days' notice to the Company of such increase.

3. Retention in Bankruptcy Case

- (a) If the Company commences a case pursuant to title 11 of the United States Code (the "**Bankruptcy Code**"), the Company promptly shall file any necessary application with the Bankruptcy Court to retain Stretto to provide the Services. The form and substance of such applications and any order approving them shall be reasonably acceptable to Stretto.
- (b) If the Company seeks authorization in a chapter 11 case to obtain postpetition financing, including debtor-in-possession loans or use of cash collateral, the Company shall include Stretto's fees and expenses incurred (i) for Clerk Services in any carve out for fees required to be paid to the Clerk of the Court, and (ii) for Administrative Advisor Services in any carve out for professional fees.
- (c) If any Company chapter 11 case converts to a case under chapter 7 of the Bankruptcy Code, Stretto will continue to be paid for Clerk Services in accordance with the terms hereunder.

4. Confidentiality

- (a) The Company and Stretto agree to keep confidential all non-public records, systems, procedures, software, and other information received from the other party in connection with the Services provided hereunder; provided, however, that if any such information was

publicly available, already in the receiving party's possession or known to it, independently developed by the receiving party, lawfully obtained by the receiving party from a third party, or required to be disclosed by law, then the receiving party shall bear no responsibility for publicly disclosing such information.

- (b) If either party reasonably believes that it is required to disclose any confidential information pursuant to an order from a governmental authority, (i) such party shall provide written notice to the other party promptly after receiving such order, to allow the other party sufficient time, if possible, to seek any remedy available under applicable law to prevent disclosure of the information; and (ii) such party will limit such disclosure to the extent such party's counsel in good faith determines such disclosure can be limited.

5. Property Rights

Stretto reserves to itself and its agents all property rights in and to all materials, concepts, creations, inventions, works of authorship, improvements, designs, innovations, ideas, discoveries, know-how, techniques, programs, systems, specifications, applications, processes, routines, manuals, documentation, and any other information or property (collectively, "**Property**") furnished by Stretto for itself or for use by the Company hereunder. The foregoing definition of Property shall include any and all data, from any source, downloaded, stored, and maintained by Stretto's technology infrastructure. Fees and expenses paid by the Company do not vest in the Company any rights in such Property. Such Property is only being made available for the Company's use during and in connection with the Services provided by Stretto hereunder.

6. Bank Accounts

At the request of the Company, in the ordinary course of the Company's business, Stretto also may assist the Company in establishing accounts with financial institutions in the name of the Company to facilitate depository management and other treasury services for which Stretto may be compensated by the Company or the respective financial institution, as applicable.

7. Term and Termination

- (a) This Agreement shall remain in effect until terminated by either party: (i) on 30 days' prior written notice to other party; or (ii) immediately upon written notice for Cause (as defined herein). "**Cause**" means (i) gross negligence or willful misconduct of Stretto that causes material harm to the Company's restructuring under chapter 11 of the Bankruptcy Code, (ii) the failure of the Company to pay Stretto invoices for more than 60 days from the date of invoice or (iii) the accrual of invoices or unpaid Services in excess of the advance held by Stretto where Stretto reasonably believes it likely will not be paid.
- (b) If this Agreement is terminated after Stretto is retained pursuant to Bankruptcy Court order, the Company promptly shall seek entry of a Bankruptcy Court order discharging Stretto of its duties under such retention, which order shall be in form and substance reasonably acceptable to Stretto.
- (c) If this Agreement is terminated, the Company shall remain liable for all amounts then accrued and/or due and owing to Stretto hereunder.
- (d) If this Agreement is terminated, Stretto shall coordinate with the Company and, to the extent applicable, the Clerk of the Court, to maintain an orderly transfer of record keeping functions, and Stretto shall provide the necessary staff, services, and assistance required for such an orderly transfer. The Company agrees to pay for such Services pursuant to the applicable rate structure.

8. No Representations or Warranties

Stretto makes no representations or warranties, express or implied, regarding the services and products sold or licensed to the Company hereunder or otherwise with respect to this Agreement, including, without limitation, any express or implied warranty of merchantability, fitness or adequacy for a particular purpose or use, quality, productiveness, or capacity. Notwithstanding the foregoing, if the above disclaimer is not enforceable under applicable law, such disclaimer will be construed by limiting it so as to be enforceable to the extent compatible with applicable law.

9. Indemnification

- (a) To the fullest extent permitted by applicable law, the Company shall indemnify and hold harmless Stretto and its members, directors, officers, employees, representatives, affiliates, consultants, subcontractors, and agents (collectively, the “**Indemnified Parties**”) from and against any and all losses, claims, damages, judgments, liabilities, and expenses, whether direct or indirect (including, without limitation, counsel fees and expenses) (collectively, “**Losses**”) resulting from, arising out of, or related to Stretto's performance hereunder. Without limiting the generality of the foregoing, Losses include any liabilities resulting from claims by any third parties against any Indemnified Party.
- (b) Stretto and the Company shall notify each other in writing promptly upon the assertion, threat or commencement of any claim, action, investigation, or proceeding that either party becomes aware of with respect to the Services provided hereunder.
- (c) The Company's indemnification of Stretto hereunder shall exclude Losses resulting from Stretto's gross negligence or willful misconduct.
- (d) The Company's indemnification obligations hereunder shall survive the termination of this Agreement.

10. Limitations of Liability

Except as expressly provided herein, Stretto's liability to the Company for any Losses, unless due to Stretto's gross negligence or willful misconduct, shall be limited to the total amount paid by the Company to Stretto for the portion of the particular work that gave rise to the alleged Loss. In no event shall Stretto be liable for any indirect, special, or consequential damages (such as loss of anticipated profits or other economic loss) in connection with or arising out of the Services provided hereunder.

11. Company Data

- (a) The Company is responsible for, and Stretto does not verify, the accuracy of the programs, data and other information it or any Company Party submits for processing to Stretto and for the output of such information, including, without limitation, with respect to preparation of statements of financial affairs and schedules of assets and liabilities (collectively, “**SOFAs and Schedules**”). Stretto bears no responsibility for the accuracy and content of SOFAs and Schedules, and the Company is deemed hereunder to have approved and reviewed all SOFAs and Schedules filed on its behalf.
- (b) The Company agrees, represents, and warrants to Stretto that before delivery of any information to Stretto: (i) the Company has full authority to deliver such information to Stretto; (ii) it has complied with all applicable data protection laws in the collection and retention of personal data (including providing any required notices and/or disclosures to data subjects, consumers, or other necessary parties); and (iii) Stretto is authorized to use such information to perform Services hereunder and as otherwise set forth in this Agreement.

- (c) The Company also agrees and represents that, before delivery of any information to Stretto that is personal data subject to the GDPR or other data protection laws, Company shall notify Stretto of the impending delivery and request any modification to this Agreement that Company believes may be required by the applicable data protection laws with respect to that personal data. For the avoidance of doubt, Stretto shall not be required to comply with data protection laws and regulations unless and until they take effect during the term of the Agreement and are applicable to the information Company delivers to Stretto. Personal data shall have the meaning assigned to the terms “personal data” and/or “personal information” under the applicable data protection laws.
- (d) If Company notifies Stretto of the applicability of the GDPR to personal data delivered pursuant to this Agreement, the parties agree that the Agreement shall be subject to the terms set forth in the GDPR Addendum attached hereto as **Exhibit A** and incorporated herein in its entirety by reference.
- (e) Attached hereto as **Exhibit B** and incorporated herein in its entirety by reference are notification procedures in the event of a Data Security Incident (as defined therein).
- (f) Any data, storage media, programs or other materials furnished to Stretto by the Company may be retained by Stretto until the Services provided hereunder are paid in full. The Company shall remain liable for all fees and expenses incurred by Stretto under this Agreement as a result of data, storage media or other materials maintained, stored, or disposed of by Stretto. Any such disposal shall be in a manner requested by or acceptable to the Company; provided that if the Company has not utilized Stretto's Services for a period of 90 days or more, Stretto may dispose of any such materials in a manner to be determined in Stretto's sole reasonable discretion, and be reimbursed by the Company for the expense of such disposition, after giving the Company 30 days' notice. The Company agrees to initiate and maintain backup files that would allow the Company to regenerate or duplicate all programs, data, or information provided by the Company to Stretto.
- (g) Notwithstanding the foregoing, if Stretto is retained pursuant to Bankruptcy Court order, disposal of any Company data, storage media, or other materials shall comply with any applicable court orders and rules or clerk's office instructions.
- (h) Stretto may use Company's name and logo on its website and in its promotional materials to state that Company is a customer of Stretto and its Services during and after the term of this Agreement.

12. California Consumer Privacy Act.

- (a) Definitions. In this Section 12,
 - (i) “**CCPA**” means the California Consumer Privacy Act of 2018, including amendments and final regulations;
 - (ii) “**Personal Information**” has the same meaning given to such term under section 1798.140 of the CCPA and is limited to Personal Information contained in any Company data provided to Stretto by the Company in order for Stretto to provide Services under this Agreement; and
 - (iii) “**Commercial Purposes**”, “**Sell**”, “**Share**”, “**Business**”, and “**Service Provider**” have the same meanings assigned to them in section 1798.140 of the CCPA.
- (b) Relationship Between the Parties. To the extent the Company is considered a Business under the CCPA, and subject to the terms of this Section 12, Stretto will act solely as Company's Service Provider with respect to Personal Information.
- (c) Restrictions. Stretto will not: (i) Sell or Share Personal Information, (ii) retain, use, or disclose Personal Information for any purpose other than for the specific purpose of performing the Services specified in this Agreement, including retaining, using, or disclosing

Personal Information for any Commercial Purpose other than providing the Services specified in this Agreement unless otherwise permitted under the CCPA; (iii) retain, use, or disclose the Personal Information outside the direct business relationship between Stretto and the Company; or (iv) combine the Personal Information that Stretto receives from, or on behalf of, the Company with Personal Information that it receives from, or on behalf of, another person or persons, or collects from its own interaction with a consumer, except as permitted by CCPA.

13. Non-Solicitation

The Company agrees that neither it nor any of its subsidiaries or affiliates shall directly or indirectly solicit for employment, employ, or otherwise retain as employees, consultants, or otherwise, any employees of Stretto during the term of this Agreement and for a period of 12 months after termination thereof unless Stretto provides prior written consent to such solicitation or retention.

14. Force Majeure

Whenever performance by Stretto of any of its obligations hereunder is materially prevented or impacted by reason of any act of God, government requirement, strike, lock-out or other industrial or transportation disturbance, fire, flood, epidemic, lack of materials, law, regulation or ordinance, act of terrorism, war or war condition, or by reason of any other matter beyond Stretto's reasonable control, then such performance shall be excused, and this Agreement shall be deemed suspended during the continuation of such prevention and for a reasonable time thereafter.

15. Choice of Law

The validity, enforceability, and performance of this Agreement shall be governed by and construed in accordance with the laws of the State of New York.

16. Arbitration

Any dispute arising out of or relating to this Agreement or the breach thereof shall be finally resolved by arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, and judgment upon the award rendered by the arbitrators may be entered in any court having jurisdiction. There shall be three arbitrators named in accordance with such rules. The arbitration shall be conducted in the English language in Irvine, California in accordance with the United States Arbitration Act. Notwithstanding the foregoing, upon commencement of any chapter 11 case(s) by the Company, any disputes related to this Agreement shall be decided by the bankruptcy court assigned to such chapter 11 case(s).

17. Integration: Severability; Modifications: Assignment

- (a) Each party acknowledges that it has read this Agreement, understands it, and agrees to be bound by its terms, and further agrees that it is the complete and exclusive statement of the agreement between the parties, which supersedes and merges all prior proposals, understandings, agreements, and communications between the parties relating to the subject matter hereof.
- (b) If any provision of this Agreement shall be held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall in no way be affected or impaired thereby.
- (c) This Agreement may be modified only by a writing duly executed by an authorized representative of the Company and an officer of Stretto.

- (d) This Agreement and the rights and duties hereunder shall not be assignable by the parties hereto except upon written consent of the other; provided, however, that Stretto may assign this Agreement to a wholly-owned subsidiary or affiliate without the Company's consent.

18. Electronic Signatures; Effectiveness of Counterparts

This Agreement may be executed with electronic signatures using DocuSign or a similar service that provides a complete, automated history of the sending and signing, including key event timestamps. If the Parties execute this Agreement electronically, they agree that their electronic signatures are the legally binding equivalent to their handwritten signatures. This Agreement may be executed in two or more counterparts, each of which will be deemed an original, but all of which shall constitute one and the same agreement. This Agreement will become effective when one or more counterparts have been signed by each of the parties and delivered to the other party, which delivery may be made by exchange of copies of the signature page by fax or email.

19. Notices

All notices and requests in connection with this Agreement shall be sufficiently given or made if given or made in writing via hand delivery, overnight courier, U.S. Mail (postage prepaid) or email, and addressed as follows:

If to Stretto: Stretto
410 Exchange, Ste. 100
Irvine, CA 92602
Attn: Sheryl Betance
Tel: 714.716.1872
Email: sheryl.betance@stretto.com

If to the Company: David Hindman

Omnis Pleasants, LLC

1 Power Station Blvd

Belmont, WV 26134

Tel: 713-492-7129

Email: contact@pleasantspower.com

With a copy to: Alexander Woolverton

Herbert Smith Freehills Kramer (US) LLP

1177 Avenue of the Americas

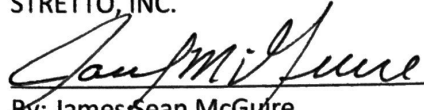
New York, NY 10036

Tel: 929-371-4425

Email: omnisteam@hsfkramer.com

IN WITNESS WHEREOF, the parties hereto have executed this Agreement effective as of July 24, 2026.

STRETTO, INC.



By: James Sean McGuire

Title: Executive Vice President

[COMPANY]

Signed by:



A28EBA63CCD04EF...

By: David Hindman

Title: Chief Executive Officer

Omnis Pleasants, LLC

7/25/2026 | 12:50 PM EDT

Exhibit A**GDPR Addendum**

This GDPR Addendum is a part of the Services Agreement (the “**Agreement**”) by and between Stretto (the “**Processor**”) and the Company (together, the “**Parties**”) only if Company notifies Processor in advance of processing relevant data that such data is subject to the GDPR pursuant to Paragraphs 11(c) and 11(d) of the Agreement².

RECITALS**WHEREAS,**

- (A) The Processor and the Company have agreed to the following terms regarding the Processing of Company Personal Data.
- (B) The Company acts as a Controller of the Company Personal Data.
- (C) The Company wishes to subcontract certain Services, pursuant to the Agreement, which imply and require the processing of personal data, to the Processor.
- (D) The Company instructs the Processor to process Company Personal Data.
- (E) The Parties seek to implement a data processing agreement that complies with the requirements of the current legal framework in relation to data processing and with the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation or “**GDPR**”).

NOW THEREFORE, the Company and the Processor agree as follows:

1. **Definitions.** The parties agree that the following terms, when used in this GDPR Addendum, shall have the following meanings.
 - (a) “**Addendum**” shall mean this GDPR Addendum;
 - (b) “**Company Personal Data**” means any Personal Data Processed by the Processor or a Subprocessor on behalf of the Company pursuant to or in connection with the Agreement, and may include, for example, Personal Data of Company’s employees, clients, customers, creditors, equity interest holders, or counter-parties;
 - (c) “**Data Protection Laws**” means EU Directive 95/46/EC, as transposed into domestic legislation of each Member State and as amended, replaced or superseded from

² Capitalized terms utilized but not defined in the GDPR Addendum have the meanings ascribed to them in the Agreement.

time to time, including by the GDPR and laws implementing or supplementing the GDPR;

- (d) **"Services"** means the services the Processor provides to the Company pursuant to the Agreement;
- (e) **"Subprocessor"** means any person appointed by or on behalf the Processor to process Personal Data on behalf of the Company in connection with the Agreement;
- (f) **"Technical and organizational security measures"** means those measures aimed at protecting Personal Data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, in particular where the processing involves the transmission of data over a network, and against all other unlawful forms of processing;
- (g) The terms **"Commission"**, **"Controller"**, **"Data Subject"**, **"Member State"**, **"Personal Data"**, **"Personal Data Breach"**, **"Processor"**, **"Processing"**, **"Special Categories of Personal Data"**, and **"Supervisory Authority"** shall have the same meaning as in the GDPR, and their derivative terms shall be construed accordingly.

2. **Obligations of the Company.** The Company agrees and warrants:

- (a) that the Processing, including the transfer itself, of the Company Personal Data has been and will continue to be carried out in accordance with the relevant provisions of the applicable Data Protection Laws (and, where applicable, has been notified to the relevant authorities of the Member State);
- (b) that it has instructed and throughout the duration of the Services will instruct the Processor to process the Company Personal Data transferred only on the Company's behalf and in accordance with the applicable Data Protection Laws, the Agreement, and this Addendum;
- (c) that the Processor will implement appropriate technical and organizational security measures with respect to the Personal Data;
- (d) that after assessment of the requirements of the applicable Data Protection Laws, the technical and organizational security measures implemented by Processor are appropriate to protect the Company Personal Data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, in particular where the processing involves the transmission of data over a network, and against all other unlawful forms of processing, and that these measures ensure a level of security appropriate to the risks presented by the processing and the nature of the data to be protected having regard to the state of the art and the cost of their implementation;
- (e) that it will ensure compliance with the technical and organizational security measures; and
- (f) that the Company Personal Data transferred to Processor does not include or involve any special categories of data, as defined by Article 9 of the GDPR.

3. **Obligations of the Processor.** The Processor agrees:

- (a) to comply with the Data Protection Laws;
- (b) to process the Company Personal Data only on behalf of the Company and in compliance with the Company's instructions and this Addendum unless required to do so by Data Protection Laws to which Processor is subject; in such a case, the Processor shall inform the Company of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest; if Processor cannot comply with the Company's instructions, it agrees to inform promptly the Company of its inability to comply with such instructions, in which case the Parties shall work together in good faith to resolve Processor's inability to process Personal Data pursuant to the Company's instructions for no less than thirty (30) days, and failing resolution, Company is entitled to suspend the processing of Personal Data and/or terminate the Agreement;
- (c) that it has implemented reasonable and appropriate technical and organizational security measures before processing the Company Personal Data;
- (d) that it will promptly notify the Company about:
 - (i) any legally binding request for disclosure of the Company Personal Data required by law, subpoena, warrant, court order, government agency, or law enforcement unless otherwise prohibited by law, subpoena, warrant, court order, government agency, or law enforcement;
 - (ii) any Personal Data Breach ; and
 - (iii) any request received directly from any Data Subject and shall not otherwise respond to such request, unless required by Data Protection Laws;
- (e) to respond promptly to reasonable inquiries from the Company relating to Processor's processing of the Company Personal Data and to abide by the advice of the supervisory authority with regard to the Processing of the Company Personal Data;
- (f) to treat all confidential information and/or Company Personal Data received by Company in accordance with the confidentiality provisions in the Agreement. Any Subprocessor authorized by Processor or the Company shall contractually agree to maintain the confidentiality of such information or be under an appropriate statutory obligation of confidentiality; and
- (g) that it shall have the Company's authorization to use Sub-processors from an agreed list and shall specifically inform the Company in writing of any intended changes to that list through the addition or replacement of Sub-processors at least thirty (30) days in advance, thereby giving Company sufficient time to be able to object to such changes prior to the engagement of the Sub-processor(s). The data importer shall provide the data exporter with the information necessary to enable the data exporter to exercise its right to object.

4. **Obligations after Termination of Personal Data Processing Services.**

- (a) The Parties agree that within 10 business days of the termination of the Agreement or provision of Services, the Processor and any Subprocessor shall, at the choice of the Company, return all Company Personal Data and the copies thereof to the Company or shall destroy all the Company Personal Data and notify the Company that it has done so, unless prohibited by applicable law, subpoena, warrant, court order, government agency, or law enforcement. In that case, the Processor will abide by the confidentiality provisions in the Agreement and will not further process the Company Personal Data.
- (b) The Processor and any Subprocessor warrant that upon request of the Company and/or of the supervisory authority, it will submit its data-processing facilities for an audit of the technical and organizational security measures.

5. **Notices.**

- (a) All notices and communications given under this Addendum must be delivered as provided for by the Agreement.

Remainder of page is intentionally blank.

Exhibit B

Data Security Incident Notification Procedures

1. The following definitions shall apply to these data security incident notification procedures:
 - (a) **“Covered Data”** means, in any form, format, or media, nonpublic information (i.e., information that is not posted on a public website maintained by Stretto in accordance with the Bankruptcy Code, the Bankruptcy Rules, or applicable bankruptcy case procedures or local rules, or filed on a non-confidential basis with the court-sponsored PACER or other docket filing system) provided or transferred to Stretto by Company or by an individual creditor, shareholder, or other third party for the purposes of Stretto’s performance under this Agreement.
 - (b) **“Data Security Incident”** means the unauthorized or accidental access to, or use, disclosure, alteration, loss, or destruction of, Covered Data.
 - (c) **“Determine”** means Stretto has actual knowledge or reasonable certainty that a Data Security Incident has occurred.
 - (d) **“Discover”** means Stretto reasonably believes that a Data Security Incident has occurred.
2. When Stretto Discovers a potential Data Security Incident, Stretto shall begin an investigation into the nature and scope of the potential Data Security Incident at the direction of Stretto’s Chief Information Security Officer and/or incident response team.
3. As soon as practicable, but not later than seventy-two (72) hours after Stretto Determines that a Data Security Incident has occurred, Stretto will provide confidential written notification of the Data Security Incident to the Company and the attorney of record for the Company (collectively, the **“Company Notice Parties”**). Stretto may, in its discretion, provide confidential written or oral notification of the Data Security Incident to (a) the Bankruptcy Court, (b) the Clerk of the Bankruptcy Court, (c) the appropriate representative of the Office of the United States Trustee, and (d) all official committees of the Court (collectively, the **“Court Notice Parties”**, and with the Company Notice Parties, the **“Notice Parties”**) and, if Stretto provides such additional notice, Stretto shall contemporaneously (or sooner) notify the Company and its attorney of record that Stretto has provided such additional notice.
4. The notification described in Section 3 (the **“Preliminary Notification”**) shall include the following information, to the extent known by Stretto at the time of the Preliminary Notification:
 - (a) a brief description of the nature of the Data Security Incident, including how it occurred, when it occurred, and the date that Stretto Discovered the Data Security Incident;
 - (b) a description of the Covered Data potentially impacted;

- (c) where appropriate, a description of what steps Stretto has taken or is taking to investigate and mitigate the effects of the Data Security Incident; and
 - (d) where appropriate, any corrective measures Stretto has taken or will take to reduce the likelihood of similar incident.
- 5. If requested, Company shall reasonably assist Stretto with Stretto's investigation of, and response to, a potential or actual Data Security Incident. After providing the Preliminary Notification, Stretto and the Notice Parties who have received notification will confer to determine, if necessary, an appropriate method to notify (a **"Supplemental Notification"**) (a) creditors or claimants whose Covered Data may have been impacted by the Data Security Incident, and (b) any state, federal, or international governmental authorities or regulators, in accordance with applicable law.
- 6. If a law enforcement official informs Stretto that providing notification to third parties regarding the Data Security Incident would impede a criminal investigation or cause damage to national security, Stretto may delay any Preliminary Notification or Supplemental Notification for the time period specified by the law enforcement official.
- 7. Unless otherwise required by law, regulation, or court order, in providing any Preliminary Notification or Supplemental Notification, Stretto shall not be required to disclose (a) confidential or privileged information, (b) information that a law enforcement official has directed to remain confidential, (c) information regarding any other Stretto clients, or (d) the identities of any Stretto employees.
- 8. Notwithstanding any provisions to the contrary in this Agreement, in Stretto's discretion, Stretto may make public statements regarding a Data Security Incident, whether by posting on its website, in a statement to the media, or in a public filing. Stretto will endeavor to provide Company notice of the content of any such statement prior to publicly releasing such statement.

Remainder of page is intentionally blank.

Exhibit C

Clerk Services Rate Sheet

OUR PRICING

Clerk Services Rate Sheet¹

CLERK SERVICES

Analyst

Waived

The Analyst processes incoming mail, creditor correspondence and returned mail, and supports the case team with administrative tasks as required.

Associate / Senior Associate

\$70-\$200

The Associate is the day-to-day contact for mailings and electronic noticing requests, and preparation of affidavits/certificates of service. The Associate responds to creditor inquiries and maintains the case information website. The Associate updates the creditor matrix and other noticing lists, and maintains the claims register by processing claim forms, objections, transfers and other actionable pleadings and correspondence.

The Senior Associate manages the data collection, compilation, and maintenance processes required of a Claims and Noticing Agent, including those related to the creditor matrix and other noticing lists, the Schedules and Statements, and the official claims register. The Senior Associate oversees all mailings, ensures timely responses to creditor inquiries, and performs quality control checks of the docket, claims data, and case information website. In addition, the Senior Associate prepares claims reports and copies of other maintained lists, as requested. Senior Associates average over seven years of experience.

Director / Managing Director

\$210-\$250

The Director is the primary contact for the company, counsel and other professionals, and provides oversight and support across all aspects of the administration for the entirety of an engagement.

The Managing Director provides industry and/or project specific expertise to support complex matters, as required. Professionals, including Stretto's executive management team, will serve in this role when appropriate. Stretto's Directors and Managing Directors have over fifteen years of experience and are typically former restructuring professionals.

Executive Management

Waived

Our Executive Management team oversees Stretto's Corporate Restructuring group and will provide consulting support for this matter at no charge.

¹ This Clerk Services Rate Sheet pertains only to work performed by Stretto under the Clerk's delegation of duties permitted by 28 U.S.C. § 156(c). Work performed by Stretto outside of this scope is subject to a separate rate structure.

CALL CENTER AND COMMUNICATION SUPPORT SERVICES

Tier 1 Support Automated IVR telephone support	Waived
Tier 2 Support AI-Enhanced client support including real-time online chat and document summarization	\$15
Tier 3 Live Support Dedicated, live communications team support including telephone and email communication	\$65-\$95

PRINTING & NOTICING SERVICES

Printing	\$0.12 (per image) ²
Postage/Overnight Delivery	Preferred Rates
ECF Email Noticing	Waived
Email Document Service	Pricing Available on Request
Fax Noticing	\$0.10 (per page)
Envelopes	Varies by Size
Coordinate and Publish Legal Notices	Pricing Available on Request
Public Securities Events	Varies by Event

ELECTRONIC SERVICES

Case Homepage Set-Up and Hosting	Waived
Robotic Process Automation³	Starting at \$0.48 (per process)
Encrypted HTTPS Bandwidth (volume discount applies)	Starting at \$0.125 (per MB)
Online Monthly Operating Report Platform Subscription	Waived
AI-Enhanced Communications Platform (monthly)	Starting at \$500 per month ⁴

² Print Surcharge of \$0.05 may apply to mailings requested outside carrier hours (8am – 6pm ET, Monday – Friday).

³ Includes ECF docket automation, subscription-based docket notifications, USPS bulk mail operations, address validation, e-filing transactions, cloud computing charges, and related activities.

⁴ Monthly rate based on size of creditor matrix.

CLAIMS ADMINISTRATION & MANAGEMENT EXPENSES

License Fee and System Maintenance	\$0.10 (per creditor per month)
Database and System Access (Unlimited Users)	Waived
Online Claims Filing Portal	Waived
Online Ballots Filing Portal	Waived
Preference Analysis (Initial Preference Review)	Standard Hourly Rates

DOCUMENT MANAGEMENT SERVICES

Electronic Imaging (Per Imaged Page)	\$0.10
FedRAMP Compliant File Retention (volume discount applies)	Starting at \$0.125 (per MB)
Virtual Data Room	Available Upon Request

CALL CENTER AND COMMUNICATION SUPPORT SERVICES

Case-Specific Toll-Free Number and Voice-Mail Box	Waived
Interactive Voice Response (Per Minute)	Waived
Monthly Maintenance Charge	Waived

ADMINISTRATIVE ADVISOR SERVICES

Schedules and Statements	Available Upon Request
Contract Review	Available Upon Request
Claims Analysis and Reconciliation	Available Upon Request
Public Securities Support	Available Upon Request
Balloting and Tabulation Services	Available Upon Request
Disbursement Services	Available Upon Request
Preference Analysis and Recovery Services	Available Upon Request

Exhibit D

Administrative Advisor Services Rate Sheet

OUR PRICING

Administrative Advisor Services Rate Sheet¹

ADMINISTRATIVE ADVISOR RATES	
Senior Associate	\$475
Director	\$550
Managing Director	\$625
Senior Managing Director	\$705

ADMINISTRATIVE ADVISOR SERVICES
Schedules and Statements Stretto provides comprehensive support for the preparation of Schedules of Assets and Liabilities and Statements of Financial Affairs, including data collection, reconciliation of financial and creditor information, quality assurance review, preparation of required schedules and supporting documentation, and coordination with debtors, counsel, financial advisors, and other stakeholders to ensure accurate and timely court filings.
Contract Review Stretto assists with the collection, organization, analysis, and management of executory contracts, unexpired leases, and related agreements. Services include developing contract databases, reviewing and categorizing agreements, identifying key contractual terms and counterparties, supporting assumption and rejection analyses, preparing schedules and reports, and coordinating with debtors, counsel, and advisors throughout the restructuring process.
Claims Analysis and Reconciliation Stretto provides end-to-end claims analysis and reconciliation services, including analysis of claim validity and classification, reconciliation of filed claims against books and records, identification and resolution of discrepancies, preparation of objection and settlement support materials, and development of customized reporting and analytics to support claims resolution efforts.

¹The Administrative Advisor Services Rate Sheet pertains to work performed by Stretto outside of the Clerk's delegation of duties permitted by 28 U.S.C. § 156(c).

Public Securities Support

Stretto provides comprehensive support for public securities noticing, solicitation, and related corporate action services, including ballot solicitation and tabulation, exchange offers, treatment elections, rights subscriptions, distributions, and other securities-holder communications and events. Stretto coordinates with banks, brokers, nominees, depositories, and their agents to facilitate the efficient execution of solicitation and communication processes, and to help ensure accurate, timely, and compliant completion of all related activities.

Balloting and Tabulation Services

Stretto manages all aspects of plan balloting and tabulation, including classification of claims, voting amount calculations, ballot processing and auditing, and vote tabulation and certification. Stretto coordinates with creditors, lenders, banks, brokers, nominees, and depositories, manages rights offering administrations, prepares customized reporting, and otherwise supports the plan approval process.

Disbursement Services

Stretto provides comprehensive distribution and payment administration services, including calculation and processing of distributions, maintenance of distribution records, check, wire, ACH, and digital payment administration, W-9 and taxpayer information management, returned and unclaimed funds administration, distribution reporting, and ongoing compliance with plan, court, and regulatory requirements.

Preference Analysis and Recovery Services

Stretto assists debtors, trustees, and litigation fiduciaries with the identification, analysis, and pursuit of potential avoidance actions, including preference and other recoverable transfers. Services include collection and analysis of financial and payment data, development of recovery models and transaction databases, review of potential defenses, preparation of demand and settlement support materials, claims reconciliation related to avoidance actions, and customized reporting and analytics to support litigation, negotiation, and recovery efforts.